Ada R. Cordero-Sacks, Esq. (SBN: 240274)
Christopher Godinez, Esq. (SBN: 310599)
LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Suite 304
West Hills, California 91304
Email: ada@loacs.com; cgodinez@loacs.com
Telephone: (818) 343-0100; Facsimile: (818) 343-0070
Attorneys for Plaintiff FOX NORMANDIE, LP

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – CENTRAL DISTRICT (STANLEY MOSK)

FOX NORMANDIE, LP, a California limited partnership Plaintiff, vs. DERRICK LAMONT BEVERLY, an individual; DOES 1 through 5, inclusive, Defendants	UD Case Number: 22 STUD 06657 UD Appeal Case Number: 23 APLC 00247 UD Court Ordered Status Conference: December 29, 2023 Dept: 91 Time: 8:30 a.m. OPPOSITION TO COURT-ORDERED STATUS CONFERENCE; COURT LACKS JURISDICTION, POSSESSION NO LONGER AT ISSUE LOCK-OUT JANUARY 26, 2023; UD APPEAL PENDING Tenant Suing Landlord in Five (5) Unlimited Civil Cases, Case Numbers: 23 STCV 08356 23 STCV 08227 23 STCV 07609 23 STCV 07707 23 STCV 07492 Tenant Filed Civil Harassment Restraining Order on Day of Lock-Out 23 STRO 00528

The Court here lacks jurisdiction to order a Status Conference in Department 91, as possession is no longer at issue (lock-out January 26, 2023), and Tenant has appealed the UD matter, case number 23 APLC 00247, which is currently pending with the Los Angeles Superior Court Appellate Division. Consequently, all ex parte must be filed with the Appellate Division. Further, Tenant has been advised over the last year by both the Landlord and Services that his personal effects were disposed of according to Code in February 2023. Further, Tenant has sued Landlord in five separate unlimited civil cases seeking redress from the UD lock-out and the statutory dispossession of his personal

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(818) 343-0100; Facsimile: (818) 343-0070

effects[1]. Tenant has similarly been informed in those cases that his personal effects were disposed of. Tenant also filed a Civil Harassment Restraining Order, Case Number, 23STRO00528 on January 26, 2023, the day of the Sheriff lock-out. This opposition follows:

I. INTRODUCTION; BACKGROUND FACTS

A. Parties & Rental Lease Agreement:

FOX NORMANDIE APARTMENTS, LP owns the property located at 849 Normandie Avenue, Los Angeles, California 90005. A Community of Friends (ACOF) is a nonprofit affordable housing developer and services provider, and Fox Normandie Apartments, LP's general partner. Plaintiff DERRICK LAMONT BEVERLY (hereinafter "Tenant") was a resident of Fox Normandie Apartments, an affordable housing development with wrap-around services.

B. Unlawful Detainer Case; Later Appeal:

The unlawful detainer case against Tenant was filed on October 13, 2022. Tenant's tenancy was being terminated for intentionally damaging the premises (hammer to elevator) and nuisance. Tenant did not file an Answer and his default was taken on November 21, 2022. The Court granted judgment for possession on November 29, 2022, and Tenant was evicted by the Sheriffs' office on January 26, 2023, pursuant to the writ of execution issued on December 2, 2022. On September 11, 2023, Tenant filed an appeal of the UD matter, case number 23APLC00247, which is currently pending in the Los Angeles Superior Court Appellate Division.

C. Restraining Order Case:

On the day of the lock-out, January 26, 2023, Tenant filed a restraining order petition, case number 23STRO00528. The restraining order petition specifically references the eviction alleging "burglary and robbery" associated with the "judge ordered instructions" of being locked-out. Clearly,

[1]In Case Number 23STCV07707, Tenant has averred to the unlimited Court Judge that the Landlord owes him $48 Million for the value of his personal effects disposed of according to statute after the Sheriff lock-out on January 26, 2023.

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there was no "illegal eviction" as put forth by Tenant in his restraining order petition. The hearing was continued once, then dismissed for lack of prosecution (Tenant did not show up).

D. **Five Unlimited Civil Cases Filed by Tenant:**

Tenant has filed five unlimited cases against the Landlord, as well as ACOF employees, as follows: unlimited case number 23STCV07492 on April 5, 2023; unlimited case number 23STCV07609 on April 6, 2023; unlimited case number 23STCV07707 on April 7, 2023; unlimited case number 23STCV08227 on April 13, 2023; and unlimited case number 23STCV08356 on April 14, 2023. The gravamen of all five (5) unlimited cases are that Tenant was improperly dispossessed of his affordable housing unit and personal effects on January 26, 2023, by the unlawful detainer lock-out.

In sum, Tenant has had ample and repeat notice that his personal effects were disposed of in early February 2023, and that is why he subsequently filed five (5) unlimited civil cases. This Court should not afford the Tenant yet another audience to air his grievances, especially when this Court lacks jurisdiction to make any orders due to both possession no longer being at issue, *and* that the UD matter is currently up on appeal.

II. POST WRIT OF EXECUTION FOR JUDGMENT, UNLAWFUL DETAINER COURT LACKS JURISDICTION; TENANT MUST SEEK A WRIT OF MANDATE:

A writ of possession issued in an unlawful detainer must be enforced without delay. CCP §715.050. To execute a writ of possession, the levying officer (the sheriff) must serve a copy of the writ on an occupant of the property. CCP §715.020(a). When the levying officer is unable to serve an occupant at the time service is attempted, the officer must execute the writ by posting a copy in a conspicuous place on the property and serving a copy on the judgment debtor personally or by mail. CCP §715.020(b). If the judgment debtor (tenant) and other occupants do not vacate the property within 5 days from the date the writ is served, the levying offer must remove them from the property and place the judgment creditor (landlord) in possession. CCP §715.020(c). Prior to restoration of

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the premises to the landlord, the Tenant may request a stay of execution pending appeal. CCP 1179(a). After restoration of the premises to the landlord, the Tenant may file a writ of mandate, which if granted, will order the sheriff to restore the premises to the Tenant.

III. NO AUTHORITY FOR THIS COURT TO MAKE ANY ORDERS AS POSSESSION NO LONGER AT ISSUE:

A. Writ of Execution Returned: UD Court No Jurisdiction:

In *Del Riccio v. Superior Court* (1952) 115 Cal. App. 2nd 29, a writ of execution was executed when the Sheriff levied judgment debtor's bank account. The bank made its return and paid the judgment amount to the Sheriff. Judgment debtor applied to the Court to have the Sheriff return the money. While the Sheriff still had the money, the Court ordered the Sheriff to not pay the judgment creditor and then stayed the matter. The reviewing Court reversed holding that "… the [trial] court could not, by ordering a stay, undo what had already been done so as to deprive the creditor of ownership and use of money collected under the writ." (*Id*. at pg 31.)

In *Cardenas v. Noren* (1991) 235 Cal. App. 3d 1344, the landlord was restored possession of the premises by sheriff's execution of a writ of possession. In the writ for mandate petition, tenant claimed he was wrongfully evicted by the sheriffs office as he was a tenant, he was named in the unlawful detainer action, but was never served with process, nor was he named in the default judgment. At the lock-out, the sheriff noted that the judgment did not include one of the named defendants from the action. Despite this discrepancy, the sheriff continued with the lock-out. None of the occupying tenants availed themselves of the claim of right to possession process outlined in CCP §1174.3. The reviewing Court affirmed the lower Court denying a writ of mandate since the tenants had the claim of right to possession process but failed to avail themselves of it. "Mandate lies to compel an officer to perform his ministerial duty. (Citations Omitted.) Where the sheriff had a pre-existing duty pursuant to the Government Code to return property seized upon an individual's arrest, issuance of a writ of mandate, ordering the sheriff to perform his duty, was appropriate." *Holt v. Kelly* (1978) 20 Cal.3d 560, 564. If, as Tenant avers, the lock-out was wrongly procured, the remedy is to seek a writ of mandate. In fact, Code of Civil Procedure §1210 permits the Court to hold a Tenant

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in contempt who has re-entered property after a judgment for possession. It does not give the Court authority to "undo" an executed writ, or make any further orders, once the writ has been returned by the Sheriffs.

Here, the Sheriff has executed on the writ of possession *almost one year ago*, restoring possession of the premises to the Landlord. Consequently, Tenant's personal effects were disposed of according to statute. Therefore, the Court has no authority to order its return to the Tenant, or make any other orders, such as mandating an unnecessary Status Conference to appease the Tenant after repeat (and unnoticed to the Landlord) ex parte applications.

B. UD Court No Jurisdiction Once Writ Returned:

"The mere fact that the court has jurisdiction of the subject matter of an action [here the old unlawful detainer case] before it does not justify an exercise of a power not authorized by law, or a grant of relief to a party that the law declares shall not be granted." *Michel v. Williams* (1936) 13 Cal.App.2d 198, 199.

Here, the Court granting the Tenant a Status Conference hearing, ordering Plaintiff to appear, incurring unnecessary costs, which the Court has no authority to set or order, especially in light of the pending appeal, is the Court abusing its discretion.

IV. NO AUTHORITY FOR THIS COURT TO MAKE ANY ORDERS; APPEAL PENDING; APPELLATE DIVISION HAS JURISDICTION, NOT TRIAL COURT

It is well established that unlawful detainer actions are wholly created and strictly controlled by statute in California. The "mode and measure of plaintiff's recovery" are limited by these statutes. The statutes prevail over inconsistent general principles of law and procedure because of the special function of unlawful detainer actions to restore immediate possession of real property. *Markham v. Fralick* (1934) 2 Cal.2d 221, 225-227; *Kwok v. Bergren* (1982) 130 Cal.App.3d 596, 599; *Vasey v. California Dance Co.* (1977) 70 Cal.App.3d 742, 748.

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An appeal may be taken from an unlawful detainer judgment as from any final judgment in a civil action. *See* CCP §§ 904.1 and 904.2. That the tenant has vacated after the trial court judgment, or has been lawfully evicted by writ of possession, does not "abort" the appeal. *See Lee v. Vignoli* (1979) 98 Cal App 3d Supp. 24, 26-27; *Green v. Sup.Ct. (Sumski)* (1974) 10 Cal 3d 616, 622. Appealing parties are subject to the same jurisdictional and procedural rules governing civil appeals generally. *See* CCP § 901 et seq.; CRC 8.100 et seq. & 8.800 et seq.

Other than seeking a CCP §1176 stay pending an already filed appeal, all other matters need to be noticed and heard in the Appellate Division, not the trial Court, including ex parte applications. *See* Los Angeles Local Rules §§ 9.3; 9.9; *Garg v. Garg* (2022) 82 Cal. App. 5th 1036 ["A perfected appeal divests jurisdiction from the trial court over portions of the action related to the judgment or order on appeal, and vests jurisdiction in the appellate court to review the judgment or order at issue." *Id*. at pg 1046.]

V. CONCLUSION:

The unlawful detainer trial court has no jurisdiction once possession is no longer at issue. Further, once an appeal has been filed, any petitions related to the judgment or an issue up on appeal (here, the judgment for possession) must be filed with the Appellate Division, and not the trial court. Therefore, here, this Court has no jurisdiction to order a Status Conference regarding the judgment for possession, especially where here the Tenant has filed at least five civil lawsuits.

DATED: December 28, 2023

BY _____
Ada R. Cordero-Sacks, Esq.
Christopher Godinez Esq.
Attorneys for Plaintiff
FOX NORMANDIE, LP

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PROOF OF SERVICE

COUNTY OF LOS ANGELES, STATE OF CALIFORNIA:

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is: 8399 Topanga Canyon Blvd., Suite 304, West Hills, California 91304.

On **December 28, 2023,** I served the foregoing document described as **OPPOSITION TO COURT-ORDERED STATUS CONFERENCE; COURT LACKS JURISDICTION, POSSESSION NO LONGER AT ISSUE LOCK-OUT JANUARY 26, 2023; UD APPEAL PENDING** in this action by placing [X] the original [ ] a true and correct copy therefore enclosed in a sealed envelope with postage thereon fully prepaid, in the United States mail at Los Angeles, California addressed as follows:

DERRICK LAMONT BEVERLY
849 S. Normandie Ave., Unit #101
Los Angeles, CA 90005
Email: derniercrilamont@yahoo.com

[X] [BY MAIL] I am "readily familiar" with the business' routine practice for the collection and processing of correspondence for mailing with the United States Postal Service. I know that correspondence is deposited with the United States Postal Service on the same day that this declaration was executed in the ordinary course of business. I know that the envelope was sealed closed and with postal therefore fully prepaid, was placed for collection and mailing on this date, following ordinary business practices, in the United States mail at Los Angeles, California.

[X] [BY ELECTRONIC MAIL] I caused said document(s) to be transmitted to the email address(es) of the addressee(s) designated above.

[ ] [ELECTRONIC SERVICE – Courtesy Copies] Pursuant to CCP § 1010.6(a)(4)), I caused such document(s) to be electronically served, via Efficient Legal, served on all interested parties in this action shown by Electronic-Filing through Efficient Legal which is then printed and maintained with the original documents in our office.

[X] [STATE] I declare under penalty of perjury under the laws of the State of California that the above is true and correct.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

DATED: December 28, 2023

Karina Medina